

NEW OR TRANSFER
LIQUOR LICENSE OR
PERMIT APPLICATION

FOR LIQUOR DIVISION USE ONLY			
Customer #:			
Trf from:			
Reviewer:		Initials	Date
Agent:			/ /
Mgr:			/ /

To be completed by City / Town / County Clerk

Local License #: 61 R-487752

License Fees
Annual Fee: \$ 1050.00 Date filed with clerk: 2 / 6 / 2024
Prorated Fee: \$ _____ Advertising Dates: (2 Consecutive Weeks Prior to Hearing)
Transfer Fee: \$ _____ March 14 & March 21, 2024
Publishing Fee: \$ 100.00 Public Hearing Date: 3 / 25 / 2024

Publishing Fee Direct Billed to Applicant: ☐

License Term: upon / issuance / Through 3 / 31 / 2025
Month Day Year Month Day Year

LICENSING AUTHORITY: Begin publishing promptly. As W.S. 12-4-104(d) specifies: **NO LICENSING AUTHORITY SHALL APPROVE OR DENY THE APPLICATION UNTIL THE LIQUOR DIVISION HAS CERTIFIED THE APPLICATION IS COMPLETE.**

Applicant (Business Name): REBECCA ANDREW VENTURES, INC

Doing Business As (DBA) / Trade Name: MR JIMS PIZA

Building to be licensed / Building Address: 4001 LARAMIE ST, UNIT A
(Address Number, and Suite or Unit Number, and Street or Road Name)
CHEYENNE WY 82001 LARAMIE
City State Zip County

Local Mailing Address: 4001 LARAMIE ST. UNIT A
(Address Number or PO Box, and Suite or Unit Number, and Street or Road Name)
CHEYENNE WY 82001 LARAMIE
City State Zip County

Local Business Telephone Number: 307-414-1400 Fax Number: _____

Business E-Mail Address: MGIRE30@GMAIL.COM

Business Primary Contact: MICHAEL GIRE
First Name Last Name

FILING FOR ☒ NEW LICENSE ☐ TRANSFER OF LOCATION ☐ TRANSFER OF OWNERSHIP ☐ ASSIGNMENT LETTER MUST BE ATTACHED FORMERLY HELD BY: _____	FILING IN (CHOOSE ONLY ONE) ☒ CITY / TOWN OF: <u>CHEYENNE</u> ☐ COUNTY OF: _____	FILING AS (CHOOSE ONLY ONE) ☐ INDIVIDUAL ☐ PARTNERSHIP ☐ LP ☐ LLP ☐ LLLP ☐ LLC ☐ LC ☒ CORPORATION (INC) ☐ POLITICAL SUDIVISION ☐ ORGANIZATION ☐ OTHER _____
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TYPE OF LICENSE OR PERMIT (CHOOSE ONLY ONE)

☐ RETAIL LIQUOR LICENSE PRIMARY BUSINESS TYPE (CHOOSE ONLY ONE) ☐ ON-PREMISE BAR ☐ OFF-PREMISE PACKAGE STORE ☐ ON & OFF PREMISE BAR & PACKAGE STORE	☒ RESTAURANT LIQUOR LICENSE ☐ BAR AND GRILL LIQUOR LICENSE ☐ RESORT LIQUOR LICENSE LIMITED RETAIL LIQUOR LICENSE (CLUB) ☐ VETERANS CLUB ☐ FRATERNAL CLUB ☐ GOLF CLUB ☐ SOCIAL CLUB	☐ MICROBREWERY PERMIT ☐ WINERY PERMIT ☐ MANUFACTURER SATELLITE PERMIT ☐ WINERY SATELLITE PERMIT ☐ COUNTY MALT BEVERAGE PERMIT ☐ SPECIAL MALT BEVERAGE PERMIT
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SPECIAL STATUTORY DESIGNATIONS (CHOOSE ONLY ONE)

☐ COMMERCIAL AIRPORT (W.S. 12-4-201(d)(iv))	☐ RESORT (W.S. 12-4-401(iv) / 12-5-201(f))
☐ GOLF CLUB (W.S. 12-5-201(f))	☐ GOLF CLUB-POLIT. SUBDIVISION (W.S. 12-4-301(e) / 12-5-201(f))
☐ GUEST RANCH (W.S. 12-5-201(f))	☐ Other: _____

OPERATIONAL STATUS (To Assist the Liquor Division with scheduling inspections (W.S. 12-1-101(a)(xxi) / 12-2-301(c) / 12-4-103(a)(iv)))

☒ FULL TIME ☐ SEASONAL ☐ NON-OPERATIONAL / PARKED	MONTHS OF OPERATION from _____ to _____ ☒ All Year (Jan-Dec) DAYS OF WEEK OF OPERATION from _____ to _____ ☒ Every Day (Mon-Sun) HOURS OF OPERATION from <u>10AM</u> to <u>10PM</u> ☐ 24 Hours a Day
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ALL APPLICANTS MUST COMPLETE QUESTIONS 1-3**1. BUILDING OWNERSHIP: W.S. 12-4-103(a)(iii)**

Does the Applicant own or lease the licensed building?

- (a) The Applicant **OWNS** the licensed building.
 (b) The Applicant **LEASES** the licensed building.

☐ YES (own)
☒ YES (lease)

If the building is leased, please submit a copy of the lease and indicate:

- (i) Lease term expiration date; located on page 1 paragraph f & g 4/2028

Note: The lease term **MUST** continue at least through the term of the liquor license or permit

- (ii) Sales provision for alcoholic or malt beverages: located, on page 3 paragraph *9

Note: The lease **MUST** contain a provision for **SALE OF ALCOHOLIC or MALT BEVERAGES**.**2. LIQUOR BUSINESS CONTROL: W.S. 12-4-601(b)**

- (a) To operate the liquor business, has the business or license/permit been assigned, leased, transferred or contracted with any other person (entity) to operate and assert total or partial control of the license or permit or the licensed building? ☐ YES ☒ NO

- (b) If the answer was **YES** to 2(a) above, explain fully and submit any documents in connection there within.

3. INTEREST IN LICENSE OR PERMIT: W.S. 12-5-401, 12-5-402, 12-5-403 -

Does any alcohol manufacturer, brewer, rectifier, wholesaler, or through a subsidiary affiliate, officer, director or member of any such firm:

- (a) Hold any interest in the license/permit applied for? ☐ YES ☒ NO
 (b) Furnish by way of loan or any other money or financial assistance for purposes hereof in the business? ☐ YES ☒ NO
 (c) Furnish, give, rent or loan any equipment, fixtures, interior decorations or signs other than standard brewery or manufacturer's signs? ☐ YES ☒ NO
 (d) If the answer was **YES** to any of the above, explain fully and submit any documents in connection there within.

4. RETAIL LIQUOR LICENSE-COUNTY LOCATIONS ONLY: W.S. 12-4-201(f)(ii)

Is the licensed building within five (5) miles of an incorporated town or city?

☐ YES ☐ NO**5. RETAIL LIQUOR LICENSE-COMMERCIAL SERVICE AIRPORTS ONLY: W.S. 12-4-201(m)**

- (a) Will food and beverage services be contracted or subcontracted? ☐ YES ☐ NO
 1. If **YES**, is a copy of the food and beverage contract or lease attached? ☐ YES ☐ NO

6. BAR AND GRILL LICENSE OR RESTAURANT LIQUOR LICENSE ONLY: 12-4-413(a) / W.S. 12-4-407(a)

Is a copy of the valid food service permit or the approved permit application attached?

☐ YES ☐ NO**7. RESORT LIQUOR LICENSE: W.S. 12-4-401 through W.S. 12-4-403(b)**

Does the resort complex:

- (a) Have an actual valuation of at least one million dollars, or have committed or expended at least one million dollars (\$1,000,000.00) on the complex, excluding the value of the land? W.S. 12-4-401(b)(i) ☐ YES ☐ NO
 (b) Include a restaurant and a convention facility; a convention facility that will seat at least one hundred (100) persons? W.S. 12-4-401(b)(ii) ☐ YES ☐ NO
 (c) Include motel, hotel or privately owned condominium, town house or home accommodations approved for short term occupancy with at least one hundred (100) sleeping rooms? W.S. 12-4-401(b)(iii) ☐ YES ☐ NO
 (d) If no on question (c), have a ski resort facility open to the general public in which has been committed or expended not less than 10 million dollars (\$10,000,000.00)? W.S. 12-4-401(b)(iv) ☐ YES ☐ NO
 (e) Will food and beverage services be contracted or subcontracted? W.S. 12-4-403(b) ☐ YES ☐ NO
 1. If **YES** to (e), is a copy of the food and beverage contract or lease attached? ☐ YES ☐ NO

8. MICROBREWERY PERMIT ONLY: WHOLESALE DISTRIBUTION: W.S. 12-2-201(a)

- (a) Will the microbrewery self-distribute its products or distribute through a licensed wholesaler? ☐ YES ☐ NO

If **YES**, a wholesale malt beverage license from the Liquor Division will be required.

9. LIMITED RETAIL (CLUB) LIQUOR LICENSE:

FRATERNAL CLUBS W.S. 12-1-101(a)(iii)(B)

- (a) Has the fraternal organization been actively operating in at least thirty-six (36) states? ☐ YES ☐ NO
- (b) Has the fraternal organization been actively in existence for at least twenty (20) years? ☐ YES ☐ NO

10. LIMITED RETAIL (CLUB) LIQUOR LICENSE:

VETERANS CLUBS W.S. 12-1-101(a)(iii)(A):

- (a) Does the Veteran's organization hold a charter by the Congress of the United States? ☐ YES ☐ NO
- (b) Is the membership of the Veteran's organization comprised only of Veterans and its duly organized auxiliary? ☐ YES ☐ NO

11. LIMITED RETAIL (CLUB) LIQUOR LICENSE:

GOLF CLUBS W.S. 12-1-101(a)(iii)(D) / W.S. 12-4-301(e):

- (a) Does the golf club have more than fifty (50) bona fide members? ☐ YES ☐ NO
- (b) Does the Applicant, maintain, or operate a bona fide golf course together with a clubhouse? ☐ YES ☐ NO
- (c) Is the Applicant a Political Subdivision of the state that owns, maintains, or operates this golf course? ☐ YES ☐ NO
1. Will food and beverage services be contracted or subcontracted? W.S. 12-4-301(e) ☐ YES ☐ NO
2. If YES, is a copy of the food and beverage contract or lease attached? ☐ YES ☐ NO

12. LIMITED RETAIL (CLUB) LIQUOR LICENSE:

SOCIAL CLUBS W.S. 12-1-101(a)(iii)(E) / W.S. 12-4-301(b):

- (a) Does the club have more than one hundred (100) bona fide members who are residents of the county in which the club is located? ☐ YES ☐ NO
- (b) Is the club incorporated and operating solely as a nonprofit organization under the laws of this state? ☐ YES ☐ NO
- (c) Is the club qualified as a tax-exempt organization under the Internal Revenue Service? ☐ YES ☐ NO
- (d) Has the club been in continuous operation for a period of not less than one (1) year? ☐ YES ☐ NO
- (e) Has the club received twenty-five dollars (\$25.00) from each bona fide member as recorded by the secretary of the club and are club members at the time of this application in good standing by having paid at least one (1) full year in dues? ☐ YES ☐ NO
- (f) Does the club hold quarterly meetings and have an actively engaged membership carrying out the objectives of the club? ☐ YES ☐ NO
- (g) Is a true copy of the club bylaws attached to this application? ☐ YES ☐ NO
- (h) Has at least fifty one percent (51%) of the membership signed a petition indicating a desire to secure a Limited Retail Liquor License? (Petition(s) Attached) ☐ YES ☐ NO

13. Applicant is Filing As Individual, Partnership, Political Subdivision, Organization or Other:
W.S. 12-4-102(a)(ii) & (iii)

Each individual, partner or officer (as applicable) must complete all of the information below.
(If more information is required, list on a separate piece of paper and attach to this application.)

True and Correct Name	Date of Birth	Residence Address No. & Street City, State & Zip DO NOT LIST PO BOXES	Residence Phone Number	Have you been a DOMICILED resident for at least 1 year and not claimed residence in any other state in the last year?	Have you been convicted within the previous 10 years of:	
					a Felony Violation Relating to Alcoholic Liquor or Malt Beverages?	any Violation Relating to Alcoholic Liquor or Malt Beverages?
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐

14. Applicant is Filing As a Corporation, Limited Company, Limited Liability Company, Limited Liability Partnership or Limited Partnership: W.S. 12-4-102(a)(iv) & (v)

Each stockholder holding, either jointly or severally, ten percent (10%) or more of the outstanding and issued capital stock or ownership of the corporation, limited liability company, limited liability partnership, or limited partnership.

Each Officer, Director or LLC member must complete all of the information below.
(If more information is required, list on a separate piece of paper and attach to this application)

True and Correct Name	Date of Birth	Residence Address No. & Street City, State & Zip <i>DO NOT LIST PO BOXES</i>	Residence Phone Number	No. of Years in Corp or LLC	% of Corporate Stock or Ownership Held	Have you been convicted within the previous 10 years of:	
						a Felony Violation Relating to Alcoholic Liquor or Malt Beverages?	any Violation Relating to Alcoholic Liquor or Malt Beverages?
MICHAEL GIRE	8-13-71	1326 MARIE LN CHEYENNE, WY 82009	303-910-6720	19	50	YES ☐ NO ☒	YES ☐ NO ☒
JENNIFER GIRE	1-13-72	1326 MARIE LN CHEYENNE, WY 82009	910-290-3666	19	50	YES ☐ NO ☒	YES ☐ NO ☒
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐

REQUIRED ATTACHMENTS:

- ☐ A statement indicating the financial condition and financial stability of the Applicant. W.S. 12-4-102(a)(vi).
- ☐ If transferring a license or permit to another Applicant, attach a form of assignment from the current licensee to the new Applicant authorizing the transfer. W.S. 12-4-601(b).
- ☐ A copy of any lease agreements. W.S. 12-4-103(a)(iii)
- ☐ Bar & Grill and Restaurant liquor license Applicants: attach a copy of the current Food Service Permit or the approved permit application for the Applicant and for the licensed building location. 12-4-413(a) / W.S. 12-4-407(a)
- ☐ If food and beverage services will be contracted or subcontracted attach a copy of the contract or lease agreement W.S. 12-4-201(m) / W.S. 12-4-301(e) / W.S. 12-4-403(b)
- ☐ If filing for a Golf Club or Social Club liquor license attach a copy of the club's bylaws W.S. 12-4-301(c)

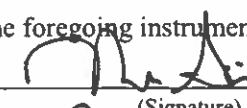
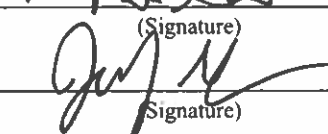
OATH OR VERIFICATION

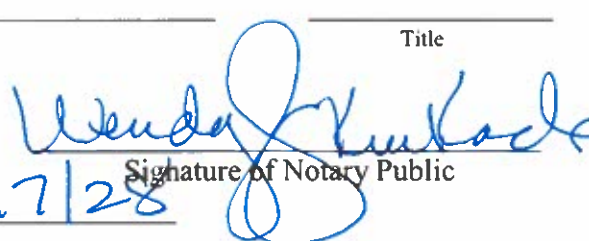
Requires signatures by ALL Individuals, ALL Partners, ONE (1) LLC Member, or TWO (2) Corporate Officers or Directors except that if all the stock of the corporation is owned by ONE (1) individual then that individual may sign and verify the application upon his oath, or TWO (2) Club Officers. W.S. 12-4-102(b)

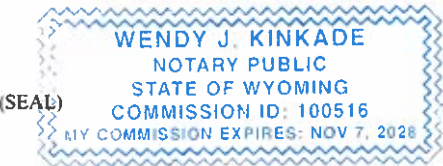
Under penalty of perjury, and the possible revocation or cancellation of the license, I swear the above stated facts, are true and accurate.

STATE OF WYOMING)
COUNTY OF Teton) SS.

Signed and sworn to before me on this 10th day of Feb, 2024 that the facts alleged in the foregoing instrument are true by the following:

1)	 (Signature)	MICHAEL GIRE (Printed Name)	President Title
2)	 (Signature)	Jennifer Gire (Printed Name)	Treasurer Title
3)	 (Signature)	 (Printed Name)	 Title
4)	 (Signature)	 (Printed Name)	 Title
5)	 (Signature)	 (Printed Name)	 Title

Witness my hand and official seal: 
Signature of Notary Public
My commission expires: 11/7/28



LEASE AGREEMENT

In consideration of the rents and covenants hereinafter set forth, Landlord and Tenant execute this Lease Agreement ("Lease") as of the 1ST day of MAY, 2018 ("Execution Date"). This lease will be in full effect upon Landlord's acceptance of architectural plans and approved contractor(s).

1. FUNDAMENTAL LEASE PROVISIONS

- (a) Landlord: Gire Land Holdings, LLC, a Wyoming limited liability company
- (b) Tenant: : Rebecca Andrew Ventures, INC,
- (c) Tenant's Trade Name: MrJims.Pizza
- (d) Premises: Unit A of College Business Park, 4001 Laramie Street, Cheyenne, WY 82001, consisting of approximately 3,000 square feet (Article 3)
- (e) Lease Term: Approximately sixty (120) months (Article 5)
- (f) Target Delivery Date: May 1st, 2018 (Article 5)
- (g) Expiration Date: April 30th, 2028 (Article 5)
- (h) Rent Commencement Date: the earlier of initial opening by Tenant or 5-18-2018 (Article 5, Article 22)
- (j) Monthly Rent: Two Thousand Two Hundred Fifty Dollars (\$5,500.00) per month, beginning with the Rent Commencement Date and continuing through the Expiration Date, unless earlier terminated as provided herein (Article 6)
- (k) Tenant's proportionate share of Real Property Taxes, Common Area Maintenance Expense and Insurance is thirty-three and one-third percent (33-1/3%), estimated at \$725.00 per month as of the Execution Date (Articles 13, 19 and 33)
- (l) Deposit: \$6,225.00 (Article 51)
- (m) Addresses for Notices (Article 57):
 - To Landlord: Gire Land Holdings, LLC
453 Vandehei Avenue, Suite 180
Cheyenne, WY 82009
 - To Tenant: Rebecca Andrew Ventures, INC
453 Vandehei Ave, Suite 180
Cheyenne, WY 82009

The provisions of this Article 1 summarize certain terms of the Lease which are more fully described in the balance of the Lease. In the event of a conflict between the provisions of this Article 1 and the balance of the Lease, the provisions of the balance of the Lease shall control. Capitalized terms shall have the meaning set forth herein or in the body of the Lease.

2. PARTIES. THIS LEASE is made and executed on the Execution Date set forth in Article 1, by and between Gire Land Holdings, LLC, a Wyoming limited liability company, of 453 Vandehei Avenue, Suite 180, Cheyenne, Wyoming 82009, as "Landlord", and Rebecca Andrew Ventures, INC, as "Tenant".

3. LEASED PREMISES. Landlord hereby leases to Tenant and Tenant leases from Landlord those certain Premises legally described on Exhibit "A" and located substantially as shown on Exhibit "B", designated as Unit A of the "College Business Park" at 4001 Laramie Street, Cheyenne, Wyoming 82001, consisting of approximately one thousand five hundred (3,000) square feet, hereinafter referred to as "Premises," together with the nonexclusive right to use those appurtenances specifically granted in this Lease, reserving and excepting, however, to Landlord, the use of the exterior walls (other than store fronts), the roof above the Premises and the area beneath the Premises, together with the right to install, maintain, use and replace ducts, wires, conduits, equipment and pipes leading through the Premises, in locations which will not materially interfere with Tenant's use of the Premises, and the right to control the nonexclusive appurtenances.

4. CHANGES AND ADDITIONS. Wherever in this Lease reference is made to the "College Business Park" it is understood to mean the property owned by Landlord as described on Exhibit "A," and drawn on Exhibit "B." Exhibit "B" hereto sets forth the general layout of the College Business Park shall not be deemed to be a warranty, representation or agreement on the part of Landlord that the College Business Park is or will remain exactly as indicated on said Exhibit "B." Landlord may relocate and may increase, reduce or change the number, dimensions, or locations of walks, the building and parking areas in any manner whatsoever as Landlord shall deem proper and reserves the right to make alterations or additions as Landlord deems appropriate. Nothing herein contained shall be construed as an exclusive grant or exclusive rental by Landlord to Tenant of the roof and exterior walls of the building of which the Premises form a part, or the sidewalks, parking areas, and other common areas outside the Premises. Tenant shall be entitled to non-exclusive use of sidewalks, parking areas, and other common areas outside the Premises, as hereafter provided.

5. TERM/EXTENSION/POSSESSION.

- (a) The primary term ("Primary Term") of this Lease shall be for a period of approximately sixty (60) months, commencing on Rent Commencement Date.
- (b) The Rent Commencement Date shall be the earlier of Tenant's initial opening or 5/1/2018.

6. MONTHLY RENT.

- (a) Primary Term Rent. Commencing on the Rent Commencement Date, Tenant shall pay to Landlord, in advance, without prior demand, by check payable to Landlord at Landlord's Notice address, consecutive monthly rental payments of Two Thousand Two Hundred Fifty Dollars (\$2,500.00) on or before the first day of each month during the Primary Term.

If the Rent Commencement Date shall occur on a day other than the first day of a calendar month, then Tenant shall pay one-thirtieth of such monthly rent and other sums payable hereunder for each day of the fractional calendar month preceding the first full calendar month after the Rent Commencement Date.

7. CONTINUED OCCUPANCY. Tenant shall continuously and uninterruptedly, during the Primary Term, during all usual business hours and on such days as comparable businesses in the College Business Park and/or such days as businesses of like nature are open for business, occupy and use the entire Premises for the purpose of purposes specified herein, and in general employ Tenant's best judgment, efforts and abilities to so operate the business.

8. TRADE NAME. Tenant shall operate Tenant's business in the Premises under the trade name of MrJims.Pizza.

9. PRIMARY USE OF THE PREMISES. The premises shall be used solely for the retail sale of a pizza restaurant (food and beverages and food for on- or off-premises consumption), and for no other use without Landlord's prior written consent. Shall the tenant decide to sell alcoholic beverages, Landlord has agreed to allow a liquor license that fits what the tenant Rebecca Andrew Ventures, Inc dba Mr Jims Pizza #001 needs to conduct this service.

10. ACCORD AND SATISFACTION. No payment by Tenant or receipt by Landlord of a lesser amount than the rent herein provided shall be deemed to be other than on account of the earliest interest, rent and other charges due and payable hereunder.

11. UTILITIES. Commencing on the date Tenant takes possession of the Premises, Tenant agrees to pay promptly, as the same become due and payable, all invoices to Tenant for all separately metered water, gas, electricity, heat, refuse pick-up, sewer service charges, and any other utilities, materials, and services furnished to or used by Tenant on or about the Premises, in addition to the rents and other payments herein provided. Landlord will provide and maintain the necessary mains, conduits, wires and cables to bring water, gas, and electricity to the exterior wall of the Premises. In no event shall Landlord be liable for interruption or failure of any utility services. Utilities which are not separately metered in Tenant's name and which serve College Business Park, including the Premises, shall be considered a Common Area Maintenance Expense, and Tenant shall pay Tenant's proportionate share, as provided below.

12. TAXES ON PERSONAL PROPERTY. Tenant shall pay before delinquency all taxes, assessments, license fees, and other charges ("taxes") that are levied and assessed against Tenant's personal property installed or located in or on the Premises, and that become payable during the term. Within ten (10) days of written demand by Landlord, Tenant shall furnish Landlord with satisfactory evidence of these payments.

If any taxes on Tenant's personal property are levied against Landlord's personal property, or if the assessed value of the building and other improvements in which the Premises are located is increased by the inclusion of a value placed on Tenant's personal property, and if Landlord pays the taxes on any of those items, Tenant within ten (10) days of demand, by Landlord, shall and on receipt of a copy of the bill therefor reimburse Landlord for the sum of such taxes levied against Landlord, or the proportion of the taxes resulting from the increase in Landlord's assessment. Landlord shall have the right to pay these taxes regardless of the validity of the levy.

13. TAXES ON REAL PROPERTY. In addition to rent, Tenant shall pay one-twelfth (1/12) of Landlord's estimate of Tenant's proportionate share of all real property taxes and general and special assessments ("real property taxes") levied and assessed against the building, other improvements, and land of which the Premises are part, on the first day of each month with Tenant's payment of rent.

The proportionate share to be paid by the Tenant shall be determined by the ratio which the total number of square feet of the floor area of the Premises bears to the total floor area of the building in which the Premises are located, which is thirty-three and one-third percent (33-1/3%). (Floor area of Premises is approximately 3,000 square feet; total floor area of the building in which the Premises are located is approximately 4,500 square feet.)

Within ninety (90) days after the end of each calendar year, Landlord shall give Tenant a statement of Landlord's calculation of Tenant's proportionate share of the real property taxes and a copy of the tax bill. If the total amount paid by Tenant under this section for any calendar year shall be less than the actual amount due from Tenant for such year as shown on such statement, Tenant shall pay to Landlord the difference between the amount paid by Tenant and the actual amount due, such deficiency to be paid by Tenant to Landlord within ten (10) days after the furnishing of each such statement by Landlord to Tenant, whether before or after termination of this Lease, and if the total amount paid by Tenant hereunder for any such calendar year shall exceed such actual amount due from Tenant for such calendar year, such excess shall be credited against the next installment due from Tenant to Landlord under this Article, or, if determined after termination of this Lease, shall be refunded to Tenant. This provision shall survive termination of this Lease.

14. LIMITATIONS ON USE. Tenant shall not suffer or allow any of the following acts to be done or conditions to exist upon the Premises:

- (a) Tenant shall not bring or keep anything in or about the Premises that will cause a cancellation of any insurance covering the building in which the Premises are located, if the rate of any insurance carried by Landlord is increased as a result of Tenant's use, Tenant shall pay to Landlord within ten (10) days before the date Landlord is obligated to pay a premium on the insurance, or within ten (10) days after Landlord delivers to Tenant a certified statement from Landlord's insurance carrier stating that the rate increase was caused solely by an activity of Tenant on the Premises as permitted in this Lease, whichever date is later, a sum equal to the difference between the original premium and the increased premium.

- (b) Any violation of any federal, state or municipal statute or ordinance, or any regulation, order or directive of a governmental agency, as such statutes, ordinances, regulations, orders or directives now exist or may hereafter provide, including but not limited to, the following:
 - (i) any violation of any Certificate of Occupancy covering or affecting the Premises or any part thereof;
 - (ii) any public or private nuisance;
 - (iii) any violation of any reasonable rules and regulations prescribed by Landlord and applicable to all tenants of the College Business Park.

15. WASTE AND NUISANCE. Tenant shall not use the Premises in any manner that will constitute waste, nuisance or unreasonable annoyance (including, without limitation, the use of loudspeakers or sound or light apparatus that can be heard or seen outside the Premises) to other tenants in the building in which the Premises are located.

16. SANITARY CONDITION. Tenant agrees to keep the Premises clean and sanitary and shall not permit waste, rubbish or refuse to accumulate.

17. USE AND MAINTENANCE OF COMMON AREA. Except as limited below, Tenant shall, for the benefit of Tenant and Tenant's employees, agents, customers and invitees, during the term of this Lease, have the non-exclusive right to use the parking area, sidewalks, landscaping, refuse container, curb cuts, exterior walls of the building and all other areas or improvements, and common utilities, common systems (e.g., HVAC) and common sewer lines ("Common Area") provided by Landlord for the convenience and use of Tenant and other tenants occupying premises of College Business Park, in common with all others to whom Landlord has granted or may hereafter grant rights to use the same, subject however, to reasonable regulations for the use thereof as prescribed from time to time by Landlord. Landlord may at any time close temporarily any Common Area to make repairs or changes, to prevent the acquisition of public rights in Common Area or to discourage non-customer parking; and may do such other acts in and to any Common Area in its judgment which may be desirable to improve the convenience thereof.

18. OPERATION AND MAINTENANCE OF COMMON AREA. Tenant agrees to operate, manage, and maintain the Common Area in good condition during the term of the Lease. The manner in which the Common Area shall be maintained, and the expenditures therefore, shall be at the sole discretion of Landlord, and the use of such Common Area shall be subject to such reasonable regulations as Landlord may prescribe from time to time, as provided in Article 20. Tenant shall be responsible for snow removal, within reason, of its entryways, sidewalks and any stairways around the building that are adjacent to the Premises, in between scheduled snow removal times.

19. TENANT'S PRO-RATA SHARE OF COMMON AREA MAINTENANCE. In addition to rent, Tenant agrees to pay Landlord Tenant's proportionate share of the expenses of every kind and nature paid or incurred by Landlord in operating, equipping, policing, and protecting, lighting, insuring, repairing and maintaining the Common Area (but not costs of capital nature) ("Common Area Maintenance"). Tenant shall pay one-twelfth of Tenant's proportionate

share of Common Area Maintenance each month in advance on the first day of each month with its payment of monthly rent. The proportionate share to be paid by Tenant shall be determined by reference to the percentage set forth in Article 13.

Tenant's proportionate share of Common Area Maintenance shall be estimated by Landlord. Within ninety (90) days after the end of each calendar year, Landlord shall furnish Tenant with an itemized statement of the actual amount of the Common Area Maintenance costs and Tenant's proportionate share of Common Area Maintenance for such period. If the total amount paid by Tenant under this section for any calendar year shall be less than the actual amount due from Tenant for such year as shown on such statement, Tenant shall pay to Landlord the difference between the amount paid by Tenant and the actual amount due, such deficiency to be paid within thirty (30) days after the furnishing of each such statement, and if the total amount paid by Tenant hereunder for any such calendar year shall exceed such actual amount due from Tenant for such calendar year, such excess shall be credited against the next installment due from Tenant to Landlord under this Article, or, if determined after termination of the Lease, such excess shall be promptly refunded to Tenant. This provision shall survive termination of this Lease.

20. RULES AND REGULATIONS FOR COMMON AREAS/COMMON AREA PARKING. Landlord reserves the right to promulgate such reasonable rules and regulations relating to the use of the Common Area, and any part or parts thereof as Landlord may deem appropriate and for the best interest of all tenants of College Business Park, and Tenant agrees to abide by such rules and to cooperate in the observance thereof.

Such rules and regulations may be reasonably amended by Landlord from time to time and all such amendments to such rules and regulations shall be effective upon notice to Tenant and delivery of a copy thereof to Tenant.

21. FLOOR AREA. "Floor area" means, with respect to each area demised by any particular Lease executed by Landlord (including the Premises), in the building in College Business Park, the aggregate of the actual number of square feet of floor space within the exterior faces of the exterior walls (except party walls as to which the center thereof instead of the exterior faces thereof shall be used). No deduction or exclusion shall be made from floor area otherwise computed by reason of columns, stairs or other interior construction or equipment within the Premises.

22. ACKNOWLEDGMENT OF COMPLETION. The initial opening by Tenant of Tenant's business in the Premises shall constitute an acknowledgment by Tenant that the Premises are then in the condition called for by this Lease and that Landlord has performed all of Landlord's Work with respect thereto.

23. ALTERATIONS TO PREMISES BY TENANT. After Tenant initially opens Tenant's business, Tenant shall not make or cause to be made any alterations, additions or improvements to the Premises, or install or cause to be installed any exterior signs, floor covering, interior or exterior lighting, plumbing fixtures, shades, canopies or awnings, or make any changes to the store front, mechanical, electrical or sprinkler systems, without the prior written approval of Landlord. Tenant shall present to the Landlord plans and specifications for such work at the time approval is sought.

24. REMOVAL BY TENANT. All alterations, decorations, additions and improvements made by Tenant shall be deemed to have attached to the Premises and to have become the property of Landlord upon such attachment, and upon expiration of the Lease or any renewal term thereof Tenant shall not remove any of such alterations, decorations, additions and improvements, except trade fixtures and personal property installed by Tenant may be removed if all rents due herein are paid in full and Tenant is not otherwise in default hereunder

25. SIGNAGE AND OTHER ADVERTISING. Tenant shall not affix or maintain upon any glass or other material on the store front or upon the exterior walls of the building any signs unless Tenant shall first have received written approval from Landlord. Otherwise, signage and other advertising must comply with all applicable laws, regulations and rules, and Tenant shall be solely responsible therefor. Conformance will be strictly enforced and any installed non-conforming signs must be brought into conformance at the sole expense of Tenant.

26. LANDLORD'S DUTY TO MAINTAIN AND REPAIR. Landlord shall keep in good order, condition and repair the foundations, structure and exterior walls (except the interior faces thereof and except for ordinary maintenance, such as painting and cleaning, which is a common area maintenance expense), down spouts, gutters, and roof of the Premises, and, except as provided in Article 28 below, the plumbing and sewage system outside of the building of which the Premises are a part (but excluding the exterior and interior of all windows, doors, plate glass and show cases and store fronts) and repairs required by any casualty or act of God except as otherwise covered herein, except for any damage to any thereof caused by any act or negligence of Tenant and/or Tenant's employees, agents, invitees, licensees or contractors; provided, however, that there shall be no obligation to do so (except in an emergency), prior to the expiration of ten (10) days written notice from Tenant to Landlord of the need thereof, or the expiration of ten (10) days written notice (or oral notice in an emergency) from Landlord to Tenant of the need thereof, if the damage was caused by any act or negligence of Tenant or Tenant's employees, agents, invitees, licensees or contractors..

27. TENANT'S DUTY TO MAINTAIN AND REPAIR. Tenant shall at all times keep the Premises (including maintenance of exterior entrances, all glass and show window molding) and all partitions, doors, door jambs, door closets, door hardware, fixtures, equipment and appurtenances thereof, including but not limited to all ventilation, and conditioning equipment, and all plumbing and electrical services inside the Premises, in good order, condition, and repair, including replacements, if necessary.

29. PLUMBING. Sinks, toilets, and drains shall not be used for any purpose other than that for which they are constructed. The expense of any breakage, stoppage, blockage, or damage to any sink, toilet, drain or drain pipe in, on, or under the Premises shall be paid solely by Tenant.

30. DEFACEMENT OF SURFACES. Except as otherwise stated in the Lease Tenant and Tenant's employees or agents shall not mark, paint, drill or in any way deface any walls, ceilings, partitions, floors, wood, stone or iron work without Landlord's prior written consent.

31. CHANGES REQUIRED BY LAW. Tenant shall at Tenant's own cost and expense promptly and properly observe and comply with (but not to the extent of making structural or extraordinary repairs, improvements and alterations not arising out of the specific use and

occupation of the Premises by Tenant) all present and future orders, regulations, directions, rules, laws, ordinances and requirements of all governmental authorities (including, but not limited to, state, municipal, county and federal governments and their departments, bureaus, boards and officials), and the Board of Fire Underwriters, and any other board or organization exercising similar functions, arising from the use or occupancy of, or applicable to the Premises, or the appurtenances thereto, or connected with the enjoyment thereof, except such as shall arise from the use and occupancy of a part of the building other than the Premises. Tenant shall have the right to contest or review, by legal procedure or in such other manner as Tenant may deem suitable, at Tenant's expense, any such order, direction, rule, requirement, law, ordinance or regulation, and if able may have the same canceled, removed, revoked or modified, provided that Landlord is not subjected to a criminal prosecution as a result thereof and that Landlord's title to the Premises is not subjected to forfeiture as a result thereof, and Tenant hereby agrees to indemnify and hold Landlord harmless from and against any civil liability as a result thereof. Such proceedings shall be conducted promptly, and shall include, if Tenant so decides, appropriate appeals. Whenever any such requirements become absolute after a contest, Tenant shall diligently comply with the same or so much thereof as shall have become absolute.

32. LIENS. Tenant agrees to pay, when due, all sums of money that may become due for, or purporting to be due for, any labor, services, materials, supplies, or equipment alleged to have been furnished or to be furnished to or for Tenant in, upon or about the Premises and which may be secured by any construction, mechanic's, materialman's or other lien against the Premises and/or Landlord's interest therein, and will cause each such lien to be discharged and released at the time the performance or any obligations required by any such lien matures and becomes due; provided, however, that Tenant may contest any such lien, but notwithstanding any such contest, if any such lien shall be reduced to final judgment and such judgment or such process as may be issued for enforcement thereof is not promptly stayed or if so stayed and said stay thereafter expires, then and in any such event Tenant shall pay and discharge said judgment forthwith.

33. INSURANCE.

(a) Landlord's Obligations.

- i) Public Liability Insurance. Landlord agrees to carry, or cause to be carried, during the Lease term, commercial general liability insurance, on account of damage to property or injury or a loss of life sustained by any person or persons resulting from acts or omissions of Landlord, its agents or representatives, or occurring in the Common Area, in the minimum amount of Three Million Dollars (\$3,000,000) combined single limit. Said insurance policy shall provide that it may not be canceled with less than thirty (30) days prior written notice to Landlord and Tenant. Landlord, upon request, shall furnish Tenant a certificate of such insurance.
- ii) Property Insurance. Landlord agrees to carry insurance, against insurable risk of physical loss covering one hundred percent (100%) of the replacement value of all improvements in College Business Park (excluding footings, foundations and other improvements below grade), including the Premises. Said insurance policy shall provide that it may not be canceled

with less than thirty (30) days prior written notice to Landlord. Tenant shall have no interest in the insurance upon the improvements in College Business Park.

iii) Reimbursement of Insurance Costs. During the Lease term, Tenant shall reimburse Landlord for Tenant's proportionate share of Landlord's annual total costs for the premiums for such insurance. A copy of the premium notice from the insurance company providing coverage for College Business Park submitted by Landlord to Tenant shall be sufficient evidence of the amount of premium due. Tenant's proportionate share of the costs for such premiums shall be due and payable in advance, as follows:

(aa) Tenant shall pay to Landlord one-twelfth of Tenant's proportionate share of the costs for such premiums, based on Landlord's estimates, on a monthly basis along with the monthly rent. Tenant's proportionate share shall be determined by reference to the percentage set forth in Article 13.

(bb) Any additional amount of Tenant's proportionate share of costs for insurance premiums for any year above Landlord's estimate shall be paid by Tenant to Landlord within ten (10) days of receipt of written demand. If Tenant shall have paid an amount in excess of Tenant's actual proportionate share of costs for insurance premiums for any year, Tenant shall be entitled to offset such excess against future payments becoming due under this Section or any other payment obligations under this Lease, or, if determined after termination of this Lease, Landlord shall refund any excess to Tenant. This provision shall survive termination of this Lease.

(b) Tenant's Obligation.

(i) Public Liability Insurance. Tenant agrees to carry, or cause to be carried, during the Lease term, a commercial general liability insurance policy on the Premises. Tenant will name Landlord as an additional insured under such policy. Such policy shall provide that both Landlord and Tenant shall be given a minimum of thirty (30) days prior written notice of cancellation, termination or change in such insurance policy or coverage. Such insurance policy shall provide coverage limits of not less than \$2,000,000.00 for bodily injury, including death, and personal injury, arising out of any one occurrence, and a general aggregate limit of not less than \$4,000,000.00, per store location. Tenant shall furnish Landlord with a certificate of such insurance upon commencement of the Primary Term, and thereafter annually to Landlord.

(ii) Personal Property Insurance. Tenant agrees to at all times during the Lease term maintain in force on all of Tenant's personal property, fixtures, leasehold improvements, and equipment in the Premises a policy or policies

of fire insurance with a standard extended coverage endorsement attached to the extent of at least eighty (80%) percent of insurable value, the proceeds of which will, so long as this Lease is in effect, be used for the repair or replacement of the personal property, fixtures, leasehold improvements, and equipment so insured. Landlord shall have no interest in the insurance upon Tenant's personal property, equipment, leasehold improvements, and fixtures.

- (c) Mutual Release. Landlord and Tenant for themselves and all parties claiming under them mutually release and discharge each other, and their respective members, officers, directors, partners, shareholders, agents and employees, from all claims and liabilities arising from or caused by any casualty or hazard, covered by insurance on the Premises or College Business Park or in connection with property on or activities conducted at College Business Park, or in connection with property on or activities conducted on the Premises, and waive any right of subrogation which might otherwise exist in or accrue to any person on account thereof. Landlord and Tenant shall obtain any endorsements necessary so that such release shall not operate in any case to invalidate such insurance coverage. Each party shall cause each casualty or property damage insurance policy carried by it to be written to provide that the insurance company waives all right of recovery by way of subrogation against the other party in connection with any damage covered by any policy.

34. DAMAGE OR DESTRUCTION LANDLORD TO REBUILD. If the Premises shall be partially destroyed by fire or other casualty insurable under full standard extended risk insurance so as to become partially untenantable, the same shall be repaired as speedily as possible at the expense of Landlord, unless Landlord shall elect not to rebuild as hereinafter provided, and if there is a substantial interference with Tenant's business a just and proportionate part of the fixed rent and other charges payable by Tennant under this Lease shall be abated until so repaired.

35. OPTION TO TERMINATE. If a sufficient portion of the building in which the Premises are located shall be destroyed or so damaged by fire, or other casualty so as to render the Premises untenantable, then in any such event, Landlord may, if it so elects, rebuild or put said building in good condition and fit for occupancy within a reasonable time (not to exceed twelve (12) months after such destruction or damage, or may give notice in writing terminating this Lease as of the date of such damage or destruction. If Landlord elects to repair or rebuild said building, it shall, within thirty (30) days after such damage or destruction, give Tenant notice of its intention to repair and then proceed with reasonable diligence to make such repairs. If Landlord fails to give Tenant notice within thirty (30) days after such damage or destruction, of its intention to repair the Premises, Tenant shall then have the option to terminate this Lease, by giving Landlord written notice within forty-five (45) days after the date of the damage or destruction, effective as of the date of the damage or destruction. If neither party gives the other party notice of intention to terminate this Lease, as provided herein, this Lease shall remain in full force and effect.

36. PORTIONS TO BE REBUILT BY LANDLORD AND TENANT. Landlord's obligation (should it elect to repair or rebuild) shall be limited to the basic building, store front and interior work to return the Premises to its condition immediately prior to the Execution Date, and Tenant

shall be obligated to repair or replace all of Tenant's Work (as defined below), and all exterior signs, trade fixtures, equipment, display cases and other installations originally installed by Tenant, at Tenant's expense.

37. DAMAGE LANDLORD NOT LIABLE FOR. Landlord shall not be liable to Tenant or to any other person whatsoever for any damage occasioned by electricity, plumbing, gas, water, steam, sprinkler or other pipe or sewage system, or by the bursting, running or leaking of any tank, washstand, closet or waste or other pipes in or about the Premises or the building, nor for any damage occasioned by water being upon or coming through the roof, skylight, vent, trapdoor or otherwise or for any damage arising from any acts or neglect of co-tenants or other occupants of College Business Park or of adjacent property, or the public, nor shall Landlord be liable for any failure to furnish, or interruption of service of any water, gas, electricity, heated water, steam and/or chilled water, caused by fire, accident riot, strike, labor disputes, acts of God, or other causes beyond the control of the Landlord.

38. DAMAGE ARISING FROM TENANT'S NEGLIGENCE. Tenant agrees to indemnify and save Landlord harmless from and against any and all claims arising from any act, omission or negligence of Tenant, or its contractors, licensees, agents, servants or employees, or arising from any accident, injury or damage whatsoever caused to any person or property occurring, in, on or about the Premises or any part thereof, and from and against all costs, expenses and liabilities incurred in or in connection with any such claim or proceeding brought thereon.

39. CONDEMNATION.

- (a) Entire or Substantial Taking. If all of the Premises or so much thereof be taken by any public or quasi-public use under any statute or by right of eminent domain, so that a reasonable amount of reconstruction of the Premises will not result in the Premises being reasonably suitable for Tenant's continued occupancy for the uses and purposes for which the Premises are leased, this Lease shall terminate as of the date that possession of said Premises, or part thereof, be taken.
- (b) Partial Taking. If only a part of the Premises shall be so taken and the remaining part thereof is reasonably suitable for Tenant's continued occupancy for the purposes and uses for which the Premises are leased, this Lease shall continue, but the fixed rent and other charges payable by Tenant under this Lease shall be reduced in the same proportion that the floor area of the portion of the Premises so taken bears to the original floor area of the Premises, and Landlord shall, at its own cost and expense, make all necessary repairs or alterations to the building in which the Premises are located to place in the same condition they were in immediately prior to the taking as reasonably possible.
- (c) Disposition of Proceeds. All compensation awarded or paid upon such a total or partial taking of the Premises shall belong to and be the property of Landlord, whether such compensation be awarded or paid as compensation for diminution in value of the leasehold or to the fee; provided, however, that Landlord shall not be entitled to any award made to Tenant for loss of business, depreciation to, and cost of removal of stock and fixtures. If this Lease is terminated as a result of any taking,

Tenant shall be entitled to an aware for the unamortized cost of Tenant's leasehold improvements.

- (d) Further Assistance. Each party agrees to execute and deliver to the other all instruments that may be required to effectuate the provisions hereof.

40. LEASE SUBORDINATION. Tenant agrees that this Lease shall be subordinate to any mortgages or trust deeds that are now or may hereafter be placed upon said Premises and/or College Business Park, and all renewals, replacements and extensions thereof, provided the mortgagee or beneficiary named in said mortgages of trust deeds shall agree to recognize the Lease of Tenant in the event of foreclosure if Tenant is not in default hereunder.

41. ESTOPPEL CERTIFICATES. Tenant agrees from time to time upon the request by Landlord, to execute, acknowledge and deliver to Landlord a statement in writing certifying that this Lease is unmodified and in full force and effect (or if there have been modifications, that the same is in full force and effect as modified and stating the modifications), and the dates to which the fixed rent and other charges have been paid in advance, if any, and confirming Tenant's acceptance of the Premises, the commencement of the Lease term, and the rent provided under the Lease; it being intended that any such statement delivered pursuant to this paragraph may be relied upon by any prospective purchaser, mortgagee or assignee of any mortgagee of the Premises or College Business Park.

42. ATTORNNMENT. Tenant shall, in the event any proceedings are brought for the foreclosure of or in the event of exercise of the power of sale under any mortgage made by Landlord covering the Premises, attorn to the purchaser upon any such foreclosure or sale and recognize such purchaser as the Landlord under this Lease.

43. ASSIGNMENT. Tenant shall not assign this Lease or any interest herein or mortgage or hypothecate this Lease or any interest herein, or permit the use of the Premises by any person or persons other than Tenant, or sublet the Premises in whole or in part, without Landlord's prior written consent. Consent to any of the foregoing prohibited acts shall apply only in the given instance, and a further like act by Tenant, or its assignee or sublessee shall require a further prior written consent of Landlord.

Any one or more of the foregoing prohibited acts, without Landlord's prior written consent, shall be void and shall, be of no force or effect.

44. SUCCESSORS AND ASSIGNS. The terms and provisions hereof shall be binding upon and inure to the benefit of the heirs, executors, administrators, and permitted successors and assigns of Landlord and Tenant.

45. DEFAULT/REMEDIES. Should Tenant's interest herein, or any part thereof, be assigned or transferred, either voluntarily or by operation of law (except as permitted by Article 43, in this Lease), including, without limitation, the filing of a petition by or against Tenant, or any member or partner or individual comprising Tenant under any insolvency or bankruptcy act, or should Tenant make any assignment for the benefit of creditors, or should Tenant fail to (i) make any payment within ten (10) days when due, of any sum due under this Lease, or (ii) perform any other

term, covenant, or condition herein within thirty (30) days (or longer reasonable period provided Tenant commences such performance within said thirty (30) days and pursues same to completion with due diligence) of when such performance is due, then, in any of such events, Landlord shall have the right, at its option, in addition to and not exclusive of any other remedy Landlord may have by operation of law, to re-enter the Premises and eject all persons therefrom, using all necessary force to do so, and either (i) declare this Lease terminated, in which event Tenant shall immediately pay Landlord a sum of money equal to the amount, if any, of unpaid rent and other amounts payable through the date of termination, or (ii) without terminating this Lease, re-let the Premises, or any part thereof, as the agent and for the account of Tenant upon such terms and conditions as Landlord may deem advisable, in which event the rents received on such reletting shall be applied first to the expense of such reletting and collection, including necessary repairs of the premises, reasonable attorney's fees, any real estate commissions paid, and thereafter toward payment of all sums due or to become due hereunder, and if a sufficient sum shall not be thus realized to pay such sums and other charges, Tenant shall pay Landlord any deficiency monthly.

Any such re-entry shall be allowed by Tenant without violence or hindrance, and Landlord shall not be liable in damages for any such re-entry, or guilty of trespass or forcible entry.

No re-entry and taking of possession of the Premises by Landlord shall be construed as an election on Landlord's part to terminate this Lease regardless of the extent of renovations and alteration by Landlord, unless a written notice of such intention is given to Tenant by Landlord. Notwithstanding any reletting without termination, Landlord may at any time thereafter elect to terminate this Lease for such previous breach.

No act or conduct of Landlord, whether consisting of the acceptance of the keys to the Premises, or otherwise, shall constitute an acceptance of the surrender of the Premises by Tenant prior to the expiration of the term of this Lease, and surrender shall occur only upon the execution by Landlord of a written acceptance thereof.

46. ATTORNEY'S FEES AND COSTS. In the event that either party shall commence an action or give notice of default by reason of the breach of any covenant or condition on the part of the other party, arising out of this Lease, then and in that event the non-defaulting party shall be entitled to have and recover from the defaulting party actual costs and reasonable attorney's fees.

47. LANDLORD MAY CURE DEFAULT. In the event of any breach hereunder by Tenant, Landlord may at any time, without notice, cure such breach for the account and at the expense of Tenant. If Landlord at any time, by reason of such breach, is compelled to pay, or elects to pay, any sum of money or to do any act which will require the payment of any sum of money, or is compelled to incur any expense, including reasonable attorney's fees, in instituting, prosecuting or defending any action or proceedings to enforce Landlord's rights hereunder or otherwise, the sum or sums to be paid by Landlord, with all interest, costs and damages, shall be deemed to be additional rent hereunder, and the sum paid by Landlord shall be due within ten (10) days from Tenant to Landlord at the time the sum is paid, and if paid by Tenant at a later date shall bear interest at the annual rate of fifteen percent (15%), from the date the sum is paid by Landlord until the date Landlord is reimbursed by Tenant.

48. INTEREST ON DELINQUENT RENT OR CHARGES. In the event Tenant fails to pay when due any rent, charges or other sums due pursuant to the terms of this Lease, Tenant shall pay Landlord interest on said rent, charges or other sums at the rate of fifteen percent (15%) from the date said amount is due until the date it is paid in full.

49. NOTICE OF DEFAULT. Excepting only the time of payment of all rentals and other sums payable by Tenant to Landlord hereunder, time of payment thereof being of the essence, no suit or other proceeding shall be commenced by either Landlord or Tenant against the other for default or breach of any covenant or condition of this Lease, unless or until the party claiming the default or breach on the part of the other shall serve upon the other written notice (or oral notice in an emergency), specifying with particularity wherein said default or breach is alleged to exist, and the other party shall fail to perform or observe said covenant or condition, or otherwise fail to remedy and cure said default or breach, within the time specified in Section 45, or the case of the Landlord default within ten (10) days after service upon such party of said notice.

50. LANDLORD'S LIEN. In the event Tenant is in default of this Lease, Landlord may hold all of Tenant's merchandise, trade fixtures and other personal property in the Premises as security for the payments of rents and other amounts due and thereafter becoming due during the remainder of the term of this Lease. Landlord may remove such property from the Premises and store it in a public warehouse or elsewhere at Tenant's expense.

51. SECURITY DEPOSIT. Tenant shall pay to Landlord at the time of the execution of this Lease a deposit of Two Thousand Six Hundred Twenty-Five Dollars (\$6,225.00) which shall be retained by Landlord as security for the full and faithful performance of every provision of this Lease to be performed by Tenant. The deposit may be used to cure any failure of the Tenant to repair or clean the Premises, or to pay rent, or any other default. Within thirty (30) days after the expiration of the term of this Lease, any unused portion of this fund will be returned to the Tenant. No interest shall accrue on this deposit. Landlord shall not be obligated to keep this deposit in a segregated account.

52. ACCESS BY LANDLORD. Landlord or Landlord's agent shall have the right to enter the Premises at all reasonable times to examine the Premises or to show the Premises to prospective purchasers or mortgagees, and to make such repairs, as Landlord may deem necessary or desirable, and Landlord shall be allowed to take all material into and upon the Premises that may be required without the same constituting an eviction of Tenant in whole or in part, and the rent reserved shall in no way abate while said repairs, examinations or showings are being made, by reason of loss of business of Tenant, or otherwise. During the six (6) months prior to the expiration of the Primary Term, as applicable, or at any time Tenant is in default, Landlord may exhibit the Premises to prospective tenants and place upon the Premises the usual notices "To Let" or "For Rent" which notices Tenant shall permit to remain thereon without molestation.

53. ABANDONMENT. If Tenant should violate this prohibition, or be dispossessed of the Premises involuntarily, by operation of law or otherwise, any personal property belonging to Tenant and left on the Premises shall be deemed to be abandoned, at Landlord's option, or Landlord may store such property in Tenant's name and at Tenant's expense, without notice to Tenant.

54. SURRENDER AND HOLDOVER. On the last day or sooner termination of this Lease, Tenant shall quit and surrender the Premises, broom clean, in good condition and repair (reasonable wear and tear and damage by acts of God or other cause beyond Tenant's reasonable control excepted) together with all alterations, additions and improvements which may have been made in, to or on the Premises, except movable furniture and movable trade fixtures put in at the expense of Tenant. Tenant, on or before the end of the Lease, shall remove all of Tenant's property from the Premises and all property not so removed shall be deemed abandoned by Tenant. If the Premises are not surrendered at the end of the Lease term, Tenant shall indemnify Landlord against loss or liability resulting from delay by Tenant in so surrendering the Premises including, without limitation, any claims made by any succeeding tenant founded on such delay, and shall pay rent equal to double the amount of the last scheduled monthly rent, which shall be prorated for each day that Tenant fails to surrender possession of the Premises to Landlord.

55. LANDLORD'S RIGHT TO SELL TENANT'S PROPERTY. Any property of Tenant which has been abandoned by Tenant or deemed to have been abandoned by Tenant under the provisions hereof and left on the Premises may be sold at public or private sale and with or without notice as Landlord shall elect, for such price as Landlord may reasonably obtain. The proceeds thereof shall be applied in payment of amounts due Landlord from Tenant hereunder and unpaid at that time and in payment of any and all expenses incurred by Landlord incident to the removal and sale of such abandoned property.

56. WAIVER. One or more waivers of any covenant or condition by Landlord or Tenant shall not be construed as a waiver of a subsequent breach of the same or any other covenant or condition, and the consent or approval by Landlord or Tenant to or of any act by Tenant or Landlord requiring Landlord's consent or approval shall not be deemed to waive or render unnecessary Landlord's or Tenant's consent or approval to or of any subsequent similar act by Tenant or Landlord. The subsequent acceptance of rent hereunder by Landlord shall not constitute a waiver of any preceding breach by Tenant of any term, covenant or condition of this Lease, other than the failure of Tenant to pay the particular rental so accepted, regardless of Landlord's knowledge of such preceding breach at the time or acceptance of such rent. No waiver shall be effective unless it is in writing and signed by Landlord.

57. NOTICES/PAYMENT. Any notice, demand, payment, request or other instrument which may be or are required to be given under this Lease shall be sent by United States mail postage prepaid and shall be addressed to the respective parties at the respective addresses set forth in Article 1 above. If there is more than one person comprising Tenant, any notice required or permitted by the terms of this Lease may be given by or to any one thereof, and shall have the same force and effect as if given by or to all thereof.

58. TENANT'S NOTICE OBLIGATION. Tenant shall give prompt notice to Landlord in case of fire or other physical damage or accidents in the Premises. Tenant shall also give prompt notice to Landlord of any defects in the Premises, or in any fixtures or equipment supplied or for which Landlord is responsible.

59. PERSONAL GUARANTIES. The members of Tenant shall personally guarantee the obligations of Tenant under this Lease by executing contemporaneously with this Lease a personal guaranty in the form attached hereto as Exhibit "C."

60. GOVERNING LAW. The Lease shall be governed by and construed in accordance with the applicable laws of the state of Wyoming.

61. COMPLETE AGREEMENT. This Lease and the Exhibits attached hereto and the rules and regulations referenced herein set forth all the covenants, promises, agreements, condition and understandings between Landlord and Tenant concerning the Premises and College Business Park, and there are no covenants, promises, agreements, conditions and understandings between them other than as referenced herein. Except as herein otherwise provided, no subsequent alterations, amendment, change or addition to this Lease shall be binding upon Landlord or Tenant unless reduced to writing and signed by the parties.

62. COVENANTS AND CONDITIONS. Each term and each provision of this Lease performable by Tenant shall be construed to be both a covenant and a condition, conferring upon Landlord, in the event of any breach of any such term or condition by Tenant, the right to terminate this Lease.

63. SEVERABILITY. The unenforceability, invalidity or illegality of any provision shall not render the other provisions of this Lease unenforceable, invalid or illegal.

64. QUIET ENJOYMENT. Landlord covenants and agrees that if Tenant pays the rent and other charges herein provided and shall perform all of the covenants and agreements herein stipulated to be performed on the Tenant's part, Tenant shall, at all times during said term, have the peaceable and quiet enjoyment and possession of said Premises without any manner of hindrance from Landlord or any persons lawfully claiming through Landlord, except as otherwise provided herein.

65. EFFECT OF CONVEYANCE. If during the term of this Lease Landlord shall transfer or sell its interest in the Premises and/or College Business Park, then from and after the effective date of such sale, Landlord shall be released and discharged from any and all further obligations and responsibilities under this Lease except those already accrued.

66. ADDITIONAL TAXES. Should there presently be in effect or should there be enacted during the term of this Lease, any law, statute or ordinance levying any tax upon rents or the income from real estate or rental property (other than federal or state income taxes), Tenant shall reimburse Landlord at the same time as rental payments are due hereunder or such taxes are incurred by Landlord pertaining to this Lease or the leasehold granted hereby.

67. TENANT'S WORK. Tenant shall, in accordance with plans and specifications prepared by or on behalf of Tenant, an approved Architect, perform such work of construction as is described in the schedule attached hereto as Exhibit "D" and the Description of Tenant's Work is hereby incorporated herein by reference.

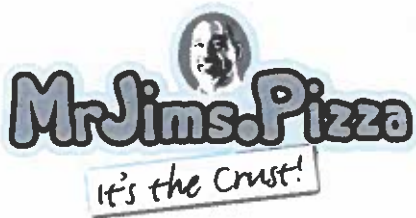
IN WITNESS WHEREOF, the parties have executed this Lease on the day and year above written.

LANDLORD:
GIRE LAND HOLDINGS, LLC



TENANT:
REBECCA ANDREW VENTURES, INC.





4001 Laramie St, Cheyenne, WY 82001

307-414-1400

Mayor Patrick Collins and Members of the City Council

My name is Mike Gire, I operate the MrJims.Pizza locations in Wyoming and have been doing so since 2005 under the Corporation name Rebecca Andrew Ventures, Inc. Our current locations include...

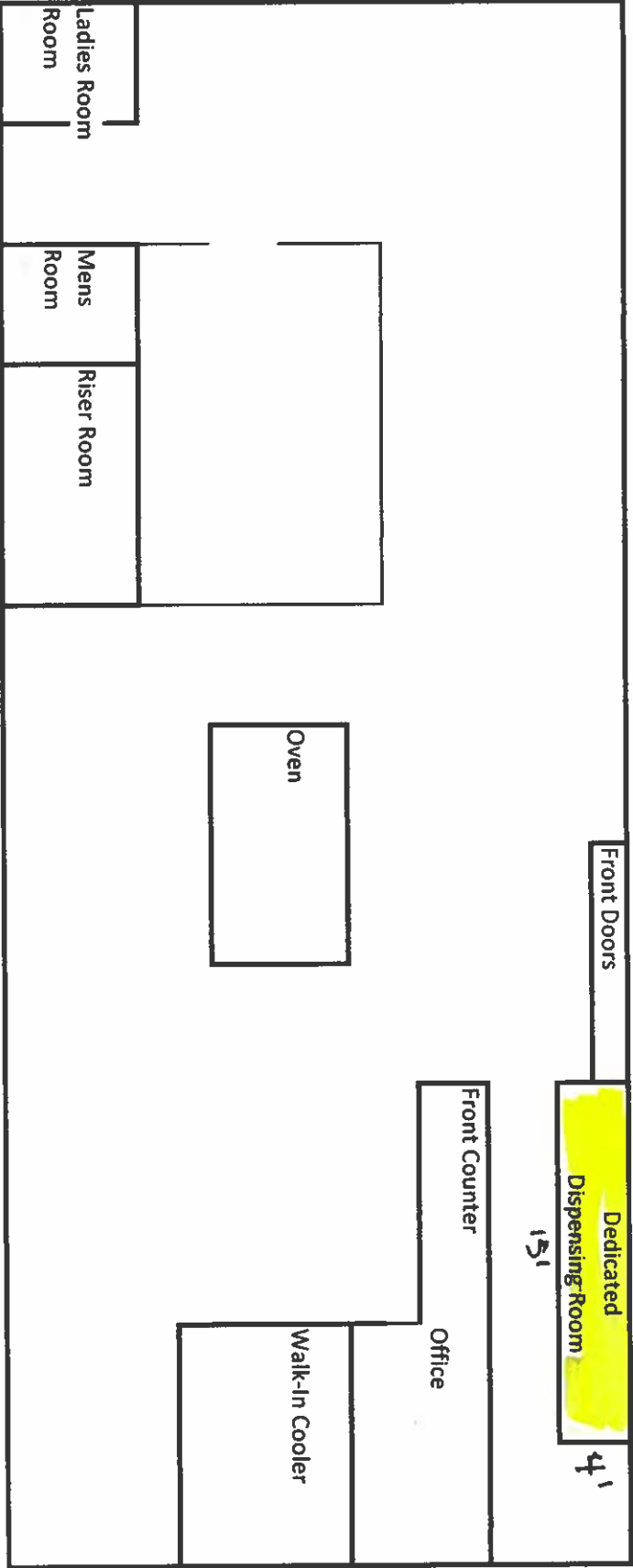
- 4001 Laramie St, Unit A, Cheyenne, WY 82001
- 453 Vandehei Ave, Suite 180, Cheyenne, WY 82009
- 856 Coffeen Ave, Sheridan, WY 82801
- 2523 Grand Ave, Unit A, Laramie, WY 82070

I am applying for the Restaurant Liquor License for the 4001 Laramie St location in Cheyenne WY. We have a dining room at this location and would like to add a limited 4 beer and 4 wine individual bottle menu for dine in customers to purchase with their meals.

This location is owned by Gire Landholdings, LLC which includes myself and my brother. Gire Landholdings, LLC leases to my company Rebecca Andrew Ventures, Inc which is owned by myself and my wife Jennifer Gire.

Please feel free to reach out to me if you have any questions...

Mike Gire



Issued by:

**WYOMING DEPARTMENT OF AGRICULTURE
CONSUMER HEALTH SERVICES
2219 CAREY AVE
CHEYENNE, WY 82002
EQUAL OPPORTUNITY IN EMPLOYMENT AND SERVICES**

Retail Food

ACCOUNT # 8429

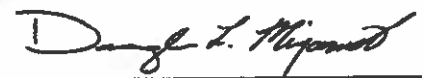
Whereas this party has made application for the licenses listed below in the State of Wyoming according to the law and agrees to comply with all laws, rules and regulations thereto, including the payment of all required fees, there is hereby issued to the applicant this license. This license is not transferable and, unless revoked, shall expire on the date indicated below.

Issued to:

EXPIRATION DATE: 5/8/2024

**MR JIMS PIZZA
4001 LARAMIE ST UNIT A
CHEYENNE, WY 82001**

**REBECCA ANDREW VENTURES, INC
REBECCA ANDREW VENTURES, INC
4001 LARAMIE ST UNIT A
CHEYENNE, WY 82001**



Director of Dept. of Ag

**THIS LICENSE MUST BE CURRENT
AND POSTED CONSPICUOUSLY
AT THE PHYSICAL LOCATION**

Order online at:



We Deliver

307-414-1400
4001 Laramie St Cheyenne 82009

Toppings

Here's our list of fresh and natural toppings.
Extra Cheese, Cheese Only, Pepperoni, Beef, Italian Sausage, Ham, Fajita Chicken, Bacon, Mushroom, Onion, Green Pepper, Black Olive, Green Olive, Jalapeño, Tomato, Pineapple, Banana Pepper, Anchovy, BBQ Drizzle, Sriracha Drizzle, Meatball, Parmesan, Roasted Garlic, Roasted Spinach,

Crust Seasonings

Add a tasty seasoning to your crust.
Garlic Butter Crust
Garlic & Parmesan Crust
Sesame Seed Crust
Garlic Herb Crust
Sriracha Sauce Crust

Sauces

We've got the sauce to fit the life you live.
Pizza Sauce
Extra Pizza Sauce, On Top of Pizza
Less Pizza Sauce
Sauce: Garlic Butter Only
White Sauce
BBQ Sauce

Original™ Pizzas

The pizza that made MrJim famous. With dough made fresh daily in our stores by Doughby our fresh dough mixer. 100% spring wheat flour baked to perfection with a crispy malty outer crust and soft well developed bread inside and under the entire crust.

Original™ Crust Choices

Hand-Stretched
Thin
Gluten Free (Kitchen NOT gluten free) - Medium \$4.5,
Pizza in a Pan (KETO - No crust) - Small & XLarge
Mozzarella Hand-Stuffed Crust - Large \$3,
Ultimate Double Cheese - Small \$3.49, Medium \$4.49, Large \$5.49, X-Large \$6.49,
Spinach Ultimate Double Cheese - Small \$4.49, Medium \$5.49, Large \$6.49, X-Large \$7.49,
Heart Shaped Thin
Heart Shaped Original
Heart Shaped Ultimate Double Cheese - X-Large \$6.49,
Heart Shaped Spinach Ultimate Double Cheese - X-Large \$7.49,
Cauliflower Crust (Gluten Free) - Small \$3.25,

Extra Toppings on Original Pizzas:

Small 1.25 Medium 2.00 Large 2.75 X-Large 3.75

Create Your Own Includes 1 topping - Small 10.99 Medium 13.99 Large 16.99 X-Large 19.99
Create your own MrJim's Pizza dining adventure. Order your pizza exactly the way you want it.

Signature Pizzas

Sticky Fingers Small 14.99 Medium 16.99 Large 19.99 X-Large 22.99
Our most Popular Pizza. Comes with mozzarella, pepperoni, ham, italian sausage, beef, mushroom, onion, bell pepper, and black olives. Cal 122 - 669

Pepperoni Deluxe Small 14.99 Medium 16.99 Large 19.99 X-Large 22.99
A pepperoni lover's dream. Comes with double pepperoni and extra mozzarella cheese. But watch out, it's extra juicy. Cal 157 - 752

Small 14.99 Medium 16.99 Large 19.99 X-Large 22.99

Three Cheese Small 14.99 Medium 16.99 Large 19.99 X-Large 22.99

MrJim's Special Small 14.99 Medium 16.99 Large 19.99 X-Large 22.99

MrJimaterian Small 14.99 Medium 16.99 Large 19.99 X-Large 22.99

Beddar Cheddar Burger Small 14.99 Medium 16.99 Large 19.99 X-Large 22.99

Chicken Premier Small 14.99 Medium 16.99 Large 19.99 X-Large 22.99

BBQ Chicken Small 14.99 Medium 16.99 Large 19.99 X-Large 22.99

MrSpinach Small 14.99 Medium 16.99 Large 19.99 X-Large 22.99

Cheddar Fajita Chicken Small 14.99 Medium 16.99 Large 19.99 X-Large 22.99

Pizza D'Lish™

Extra Toppings on Pizza D'Lish:
Large 1.25

Customize your own thinner but not thin lightly topped Pizza D'Lish.

Our thinner but not thin lightly topped pizza with mozzarella, pepperoni, ham, sausage, beef, mushroom, onion and bell pepper. Cal 227 - 321

Our thinner but not thin lightly topped pizza with mozzarella, pepperoni, sausage, beef and ham. Cal 236 - 330

Our thinner but not thin lightly topped pizza with mozzarella, cheddar, double beef, onion, and bell pepper.
Cal 213 - 307

Our thinner but not thin lightly topped pizza with mozzarella, mushroom, onion, bell pepper, black olive and tomato. Cal 204 - 298

Chicken

Wings - 8 Pieces \$11.99 16 Pieces \$21.99 24 Dinner Made Easier \$29.99

Tasty spicy hot chicken wings. Also available in BBQ flavor. Served with ranch dressing (other dipping sauces are available).

Chicken Nuggets - 8 oz. \$7.99 Dinner Made Easier feed 4-7 \$19.99

All white meat chicken nuggets. Served with your favorite dipping sauce.

Stix

Jim Stix - Small 10.99 Medium 12.99 Large 15.99 X-Large 18.99

Our hand-stretched crust with buttery garlic sauce and mozzarella cheese. Cut into strips and served with your choice of sauce for dipping.

Nacho Stix - Small 14.99 Medium 16.99 Large 19.99 X-Large 22.99

Strips of our thin and crispy crust with chicken or beef, onions, jalapenos, mozzarella, and cheddar cheese. Served with salsa! Take off Chicken and add Beef.

Salads

Dinner Salad - Half \$4.99 Full \$7.99 Dinner Made Easier feed 4-7 \$15.99

Comes with fresh lettuce or spinach and tomato. Served with choice of dressing.

MrJim's Garden Salad - Half \$5.99 Full \$9.99 Dinner Made Easier feed 4-7 \$17.99

Comes with fresh lettuce or spinach, tomato, onion, green pepper, mushroom, and black olive. Served with choice of dressing.

MrJim's Special Salad - Half \$6.99 Full \$11.99 Dinner Made Easier feed 4-7 \$19.99

Comes with fresh lettuce or spinach, tomato, onions, green pepper, bacon, ham, mushroom, and mozzarella cheese. Served with choice of dressing.

Chicken Fajita Salad - Half \$6.99 Full \$11.99 Dinner Made Easier feed 4-7 \$19.99

Comes with fresh lettuce or spinach, fajita chicken, onion, cheddar cheese, green pepper, black olive, and tomato. Served with choice of dressing.

Chicken Nuggets Salad - Half \$6.99 Full \$11.99 Dinner Made Easier feed 4-7 \$19.99

Comes with fresh lettuce or spinach, chicken nuggets, onion, cheddar cheese, green pepper, black olive and tomato. Served with choice of dressing.

Pasta

Baked Pasta - Individual \$7.99 Dinner Made Easier feed 4-7 \$19.99

Baked penne marinara covered with mozzarella . Add up to 2 toppings for an additional charge.

Bread

Bread Buds - Regular \$4.99

Delightful buds of our famous original crust baked well and covered in garlic butter and Parmesan. Served with garlic dipping sauce. Other dipping sauces available.

Bread Stix - Dinner Made Easier feed 4-7 \$7.99

Long fresh baked stix of bread. Now available in 2 flavors Garlic Sauce n' Parmesan and Garlic Sauce n' Cheddar.

Side Items

String Cheese - 10 String Cheese \$3.49 20 String Cheese \$5.49
Keep the children busy pulling cheese strings while you set the table.

Pizza in a Pan (Keto) - Individual \$7.50 Dinner Made Easier feed 2-3 \$16.75
Create your own keto compliant crustless pizza.

Drinks

2 Liter
\$3.99 Dr Pepper, Coke, Diet Coke, Sprite, Coke Zero, Fanta Orange, Barq's Rootbeer,

Desserts

Supreme Brownie Bites - Regular \$5.49 Dinner Made Easier 48 Bites \$44.99
A brownie cut into 4 bite sized pieces, covered with marshmallows and drizzled with caramel and chocolate sauce.

Chocolate Chunk Cookie - 7" Round \$7.99 3 Pack \$22.99 6 Pack \$45.99
Large Semi-Sweet and Milk Chocolate Chunks and delicious dough combine to deliver a homemade taste.

Cin Stix - Regular \$4.99 Dinner Made Easier feed 4-7 \$7.99
So good they're cin-ful! A buttery flavored loaf of bread sprinkled with sugar and cinnamon. Served with a side of decadent icing.

Subs

Pepperoni Pizza Sub - Regular 8.50
Served toasted with, Mozzarella, Pepperoni, and Pizza Sauce

BBQ Cheddar Burger Sub - Regular 8.50
Served toasted with Beef, Mozzarella, Cheddar, Bacon, Onion, Green Pepper, and BBQ Sauce

Chicken Bacon Ranch Sub - Regular 8.50
Served toasted with Fajita Chicken, Cheddar, Mozzarella, Bacon, and Ranch Dressing.

Garlic Veggie Sub - Regular 8.50
Served toasted with Mozzarella, Green Pepper, Onion, Tomato, Black Olive, Mushroom and buttery flavored Garlic sauce